

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

VERA MOORE, Temporary Administrator of all and
singular the personal property, goods, chattels, and credits
of the Estate of KEVIN MOORE, individually,

SUMMONS

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

Plaintiff designates Kings
County as the place of trial.

THE CITY OF NEW YORK, POLICE OFFICER JAMAL
MOYE, Shield No, 20924, DETECTIVE KEITH STARK,
Shield No. 324, and POLICE OFFICERS JOHN DOES# 1-
10 (names and numbers of whom are unknown at present),
and other unidentified members of the New York City
Police Department,

Defendants.

----- X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 1, 2023

Yours, etc.
David M. Hazan
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER JAMAL MOYE, Shield No, 20924, 73rd Precinct
DETECTIVE KEITH STARK, Shield No. 324, Gun Violence Suppression Unit, Zone 1

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

VERA MOORE, Temporary Administrator of all and
singular the personal property, goods, chattels, and credits
of the Estate of KEVIN MOORE, individually,

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff,

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, POLICE OFFICER JAMAL
MOYE, Shield No, 20924, DETECTIVE KEITH STARK,
Shield No. 324, and POLICE OFFICERS JOHN DOES# 1-
10 (names and numbers of whom are unknown at present),
and other unidentified members of the New York City
Police Department,

Defendants.

----- X

Plaintiff, VERA MOORE, as Temporary Administrator of all and singular the personal
property, goods, chattels, and credits of the Estate of KEVIN MOORE, individually, by her
attorneys, Jacobs & Hazan, PLLC, as and for her Complaint herein, alleges upon information and
belief as follows:

PRELIMINARY STATEMENT

1. That, upon information and belief, this is a civil rights action to recover
money damages arising out of defendants' violation of the rights of plaintiff's decedent, KEVIN
MOORE, deceased, as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights
secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution,
and the common law and the laws of the State of New York. On
April 2, 2020, at approximately 9:30 p.m., plaintiff's decedent, KEVIN MOORE, deceased,
while lawfully present in the vicinity of 536 Chester Street, Brooklyn, New York, was subject to
an unlawful stop, search, assault, battery, excessive force, false arrest, and false imprisonment by
the defendant New York City Police Officers. Plaintiff's decedent, KEVIN MOORE, deceased,
was deprived of his constitutional and common law rights when the individual defendants
unlawfully stopped, searched, assaulted, battered, falsely arrested, falsely imprisoned, and
subjected plaintiff's decedent, KEVIN MOORE, deceased, to the use of excessive force in
violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. That, at all times hereinafter mentioned, the plaintiff Vera Moore, is a resident of the State of New York, and that her interest in this matter is as Temporary Administrator of the Estate of Kevin Moore, deceased, who was Vera Moore's son.

3. That, upon information and belief, the plaintiff Vera Moore, was appointed Temporary Administrator of the Estate of KEVIN MOORE, deceased, by the Kings County Surrogates Court.

4. That, upon information and belief, POLICE OFFICER JAMAL MOYE, Shield No, 20924, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. That, upon information and belief, POLICE OFFICER JAMAL MOYE, Shield No, 20924, was at all times relevant herein, assigned to the Narcotics Borough Bronx.

6. That, upon information and belief, POLICE OFFICER JAMAL MOYE, Shield No, 20924, is being sued in his individual and official capacities.

7. That, upon information and belief, DETECTIVE KEITH STARK, Shield No. 324, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

That, upon information and belief, DETECTIVE KEITH STARK, Shield No. 324, was at all times relevant herein, assigned to the 73rd Precinct and is presently assigned to the Gun Violence Suppression Unit, Zone 1.

8. That, upon information and belief, DETECTIVE KEITH STARK, Shield No. 324, is being sued in his individual and official capacities.

9. That, upon information and belief, New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. That, upon information and belief, Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. That, upon information and belief, at all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the

lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. That, upon information and belief, at all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised, and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

13. That, upon information and belief, defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. That, upon information and belief, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. That, upon information and belief, plaintiff’s decedent, KEVIN MOORE, deceased, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. By way of background, on or about April 2, 2020, at approximately 9:30 p.m. plaintiff’s decedent, KEVIN MOORE’s cousin Eghosa Agho lawfully drove his vehicle into the driveway of his single-family home which was located on private property at 536 Chester Street, Brooklyn, New York, and parked the vehicle.

17. Plaintiff’s decedent, KEVIN MOORE and two female friends were passengers in Eghosa Agho’s vehicle.

18. After Eghosa Agho parked the vehicle, everyone in the vehicle exited the vehicle.

19. Plaintiff’s decedent, KEVIN MOORE and the two females began to walk away from the vehicle and Eghosa Agho’s house because they were going to pick some snacks up from the store and then come back to Eghosa Agho’s home.

20. Eghosa Agho began to walk toward the front door of his home. However, as Eghosa Agho walked toward the front door of his home, he was approached by the individually named defendant NYPD officers., without reasonable suspicion or probable cause to believe Eghosa Agho committed a crime or violated the law.

21. The defendant officers had absolutely no legal basis to stop or seize Eghosa Agho or to enter the private property where his home was located.

22. The defendant officers trespassed onto the private property where Eghosa Agho's home is located without a legal basis to enter the property.

23. The defendant officers unlawfully ordered claimant Eghosa Agho to stop.

24. At no time relevant herein did the officers possess objective facts and /or evidence that gave the officers reasonable suspicion or probable cause to believe Eghosa Agho violated the law or committed a crime.

25. Eghosa Agho asked the officers why they were ordering him to stop and whether they had any reason to believe he did something wrong or violated a law.

26. The defendant officers did not answer Eghosa Agho's questions about why they ordered him to stop.

27. When claimant Eghosa Agho reached the vicinity of the front door to his home, he turned around with his back to the front door and was face to face with one of the police officer defendants.

28. The police officer did not speak to claimant Eghosa Agho when he turned around and was facing the officer. Instead, the officers assaulted and battered claimant Eghosa Agho by physically pushing claimant Eghosa Agho away from the defendant police officers and into the front door of claimant's home, with an unreasonable amount of force.

29. The police officers' behavior toward Eghosa Agho and the fact that the officer pushed Mr. Agho for absolutely no reason and without any legal basis, caused Mr. Agho to become extremely fearful of the officers and he was concerned that they might seriously injure or kill him. Eghosa Agho did not understand what was transpiring or why the defendant officers were acting in this manner. Therefore, Eghosa Agho retreated inside of his home and closed the front door behind him because he was frightened by the defendant police officers.

30. Plaintiff's decedent, KEVIN MOORE had barely walked off of the property of Eghosa Agho's home when the interaction between the officers and Eghosa Agho began.

31. Plaintiff's decedent, KEVIN MOORE saw the defendant police officers enter the confines of the property and harass Eghosa Agho.

32. Therefore, instead of proceeding to the local store, plaintiff's decedent, KEVIN MOORE returned to Eghosa Agho's home and walked up to the front porch of the home and stood on the front porch with the police officers.

33. The defendant police officers then began attempting to try to open the metal gate that was locked which covered the front door to Eghosa Agho's home.

34. When the defendant officers began trying to unlawfully open the metal gate covering the front door to the home, Mabel Agho, Eghosa Agho's mother and the owner of the home, opened the front door of their home to speak to the police officers through the metal gate.

35. At that point, plaintiff's decedent, KEVIN MOORE attempted to leave the front porch of the home because the atmosphere was becoming too heated for plaintiff's decedent, KEVIN MOORE's comfort, and he thought he would be safer if he got off the porch of the home.

36. As plaintiff's decedent, KEVIN MOORE tried to leave the porch, one of the defendant police officers pushed plaintiff's decedent, KEVIN MOORE very forcefully on his back, causing plaintiff's decedent, KEVIN MOORE to fall down the stairs leading to the porch.

37. Plaintiff's decedent, KEVIN MOORE fell onto 2 police officers.

38. The officer assaulted, battered, and subjected plaintiff's decedent, KEVIN MOORE to the use of excessive force without any legal basis to subject plaintiff's decedent, KEVIN MOORE to the use of any force.

39. The force used against plaintiff's decedent, KEVIN MOORE by the defendant police officer caused plaintiff's decedent, KEVIN MOORE to fall in a manner that caused injury to plaintiff's decedent, KEVIN MOORE.

40. When plaintiff's decedent, KEVIN MOORE landed on top of the two police officers, the officers proceeded to grab plaintiff's decedent, KEVIN MOORE and throw him over a gate located in front of the house.

41. Then the defendant officers grabbed plaintiff's decedent, KEVIN MOORE by the shirt and punched him in the face with closed fists several times, causing plaintiff's decedent, KEVIN MOORE to bleed from the right side of his lip.

42. Additionally, after the officers threw plaintiff's decedent, KEVIN MOORE over the gate, they pinned his arm between his chest and the ground, causing pain to plaintiff's decedent, KEVIN MOORE's arm.

43. The excessive force, assault, and battery used by the defendant officers against plaintiff's decedent, KEVIN MOORE, caused plaintiff's decedent, KEVIN MOORE to suffer from a swollen lip, cuts on his face, injuries and swelling to his knee, and injuries to his back.

44. After the officers finished physically assaulting plaintiff's decedent, KEVIN MOORE, without any legal basis to use any force against him, the defendant police officers

unlawfully handcuffed plaintiff's decedent, KEVIN MOORE and falsely arrested him, without probable cause or any legal justification for the arrest.

45. Plaintiff's decedent, KEVIN MOORE was transported to the 73rd Precinct against his will whereat he was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours.

46. The defendant police officers unlawfully searched plaintiff's decedent, KEVIN MOORE, without probable cause or legal justification.

47. The officers did not recover any illegal drugs, weapons or contraband pursuant to the search of plaintiff's decedent, KEVIN MOORE.

48. At no time relevant herein did plaintiff's decedent, KEVIN MOORE commit a crime or violate the law in any manner, nor did the police officers possess an objective factual basis to establish probable cause to believe he violated the law.

49. Nevertheless, the defendant police officers unlawfully searched, frisked, questioned, handcuffed, and falsely arrested plaintiff's decedent, KEVIN MOORE.

50. Plaintiff's decedent, KEVIN MOORE was unlawfully fingerprinted, photographed and detained in a filthy holding cell at the 73rd Precinct for many hours even though the officers lacked any factual basis to accuse him of committing a crime.

51. On April 3, 2020, the officers transported plaintiff's decedent, KEVIN MOORE to Kings County Central Booking whereat the unlawful detention continued for many hours.

52. The defendant police officers charged plaintiff's decedent, KEVIN MOORE with Disorderly Conduct, Obstructing Governmental Administration, and they alleged that plaintiff's decedent, KEVIN MOORE's legal pocketknife was not legal.

53. The defendant police officers falsely told the District Attorney's Office that plaintiff's decedent, KEVIN MOORE ran to the front door of the home after Eghosa Agho retreated inside, blocked the officers from gaining entry to the home and began yelling and making a scene that caused a crowd to gather.

54. On April 3, 2020, at approximately 5:00 pm, approximately 21 hours after plaintiff's decedent, KEVIN MOORE was initially arrested by the defendant officers, the Kings Country District Attorney's Office declined to prosecute plaintiff's decedent, KEVIN MOORE and he was released from custody without being charged with or prosecuted for allegedly committing a crime.

55. The defendant police officers did not possess evidence to establish probable cause to arrest and or prosecute plaintiff's decedent, KEVIN MOORE for any crime.

56. That, upon information and belief, at no time did the defendant police officers recover any guns, drugs, or contraband of any kind from plaintiff's decedent, KEVIN MOORE, deceased.

57. That, upon information and belief, some of the police officer defendants observed the violation of the rights of plaintiff's decedent, KEVIN MOORE, deceased, under the Constitution of the United States and New York State Law and did nothing to prevent the assault, battery, excessive force, false arrest, unjustifiable imprisonment and malicious prosecution of plaintiff's decedent, KEVIN MOORE.

58. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff's decedent, KEVIN MOORE in this case.

59. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

60. Defendant City of New York is liable to plaintiff's decedent, KEVIN MOORE for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment and excessive force because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

61. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

62. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's decedent, KEVIN MOORE's injuries because the officers knew there would not be any consequences for violating , and excessive force's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

63. The unlawful stop, question, frisk, search, false arrest and false imprisonment, and excessive force used against plaintiff's decedent, KEVIN MOORE by the individually named defendants caused plaintiff's decedent, KEVIN MOORE to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

64. That, upon information and belief, plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. That, upon information and belief, the individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff's decedent, KEVIN MOORE to be unlawfully seized, unlawfully searched, falsely arrested and imprisoned without probable cause in violation of plaintiff's decedent, KEVIN MOORE, deceased, right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

66. That, upon information and belief, the plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. That, upon information and belief, the acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff's decedent, KEVIN MOORE and, in fact, confined plaintiff's decedent, KEVIN MOORE, deceased, and plaintiff's decedent, KEVIN MOORE, deceased, was conscious of the confinement. In addition, plaintiff's decedent, KEVIN MOORE did not consent to the confinement and the confinement was not otherwise privileged.

68. That, upon information and belief, as a direct and proximate result of such acts, defendants deprived plaintiff's decedent, KEVIN MOORE, deceased, of his rights under the laws of the State of New York and the United States Constitution.

69. That, upon information and belief, as a result of the aforementioned conduct of defendants, plaintiff's decedent, KEVIN MOORE, deceased, sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

70. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The illegal approach, pursuit, stop, question, and frisk employed by defendants herein terminated plaintiff's decedent, KEVIN MOORE's freedom of movement through means intentionally applied.

72. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff's decedent, KEVIN MOORE was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

73. As a direct and proximate result of such acts, defendants deprived plaintiff's decedent, KEVIN MOORE of his rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. As a result of the aforementioned conduct of defendants, plaintiff's decedent, KEVIN MOORE sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

76. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The illegal approach, pursuit, stop and search inside plaintiff's decedent, KEVIN MOORE's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's decedent, KEVIN MOORE's freedom of movement through means intentionally applied.

78. Defendants lacked probable cause to search plaintiff's decedent, KEVIN MOORE.

79. As a direct and proximate result of such acts, defendants deprived plaintiff's decedent, KEVIN MOORE of her rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. As a result of the aforementioned conduct of defendants, plaintiff's decedent, KEVIN MOORE sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights (Excessive Force)

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The use of excessive force by defendants by pushing plaintiff's decedent, KEVIN MOORE down the stairs, throwing him over a gate, and repeatedly punching and kicking plaintiff's decedent, KEVIN MOORE throughout his body was an objectively unreasonable physical seizure of plaintiff's decedent, KEVIN MOORE in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

84. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

85. That, upon information and belief, the plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. That, upon information and belief, defendants had an affirmative duty to intervene on behalf of plaintiff's decedent, KEVIN MOORE, deceased, whose constitutional rights were being violated in their presence by other officers.

87. That, upon information and belief, defendants failed to intervene to prevent the unlawful conduct described herein.

88. That, upon information and belief, as a result of the foregoing, plaintiff's decedent, KEVIN MOORE, deceased, had his liberty restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

89. That, upon information and belief, as a direct and proximate result of such acts, defendants deprived plaintiff's decedent, KEVIN MOORE, deceased, of his rights under the laws of the State of New York and the United States Constitution.

90. That, upon information and belief, as a result of the aforementioned conduct of defendants, plaintiff's decedent, KEVIN MOORE, deceased, sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Plaintiff's decedent, KEVIN MOORE was unlawfully searched, interrogated, frisked, falsely arrested plaintiff's decedent, KEVIN MOORE, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest and subject to the use of excessive force on plaintiff's decedent, KEVIN MOORE pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

93. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

94. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

95. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff's decedent, KEVIN MOORE because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and

falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

96. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

97. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's decedent, KEVIN MOORE's injuries because the officers knew there would not be any consequences for violating plaintiff's decedent, KEVIN MOORE's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

98. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, and arrests, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

99. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

100. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

101. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff's decedent, KEVIN MOORE, and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff's decedent, KEVIN MOORE has been deprived of his rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

102. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff's decedent, KEVIN MOORE as alleged herein.

103. That, upon information and belief, the aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of the rights of plaintiff's decedent, KEVIN MOORE, deceased, as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

104. That, upon information and belief, the foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff's decedent, KEVIN MOORE, deceased, as alleged herein.

105. That, upon information and belief, as a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff's decedent, KEVIN MOORE, deceased, was unlawfully stopped, questioned, searched, arrested, and subjected to the use of excessive force.

106. That, upon information and belief, defendants collectively and individually, while acting under color of state law were directly and actively involved in violating the constitutional rights of plaintiff's decedent, KEVIN MOORE, deceased.

JURY DEMAND

107. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff, VERA MOORE, Temporary Administrator of the Estate of KEVIN MOORE, demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 1, 2023

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
April 2, 2023

David M. Hazan

DAVID M. HAZAN